

June 8, 2026
Dept. 9
Probate Tentative Rulings

6.	PP20180253	ESTATE OF FELIPE DURAN
Motion for Terminating Sanctions		

Petitioner filed this motion for terminating sanctions on April 7, 2026. The motion reflects the court made an order compelling discovery responses and for sanctions against Defendant on August 31, 2023. The motion asserts Respondent has failed to comply with the order and has failed to make any payments toward the sanctions.

CCP §§ 2032.240(d) and 2032.410 authorize a court to impose sanctions under Chapter 7 of the Discovery Act, including issue, evidence, terminating or monetary sanctions, upon a Plaintiff who (1) fails to obey a court order compelling response and compliance to a demand for physical or mental examination (CCP §2032.240(d)) or (2) fails to submit to a physical or mental examination (CCP §2032.410).

The trial court should tailor the sanction for such conduct to “fit the crime.”(Reedy v. Bussell (2007) 148 Cal.App.4th 1272, 1293.) The court cannot impose sanctions as punishment; the choice of sanctions should not give the moving party more than it would have gotten had the discovery been responded to. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992; Caryl Richards, Inc. v. Superior Court, 188 Cal.App.2d 300, 303.) Before issuing terminating sanctions, the court should usually grant lesser sanctions....”(Doppes, supra, 174 Cal.App.4th at 99.) It is only when a party persists in disobeying the court’s orders that the ultimate sanctions of dismissing the action or entering default judgment, etc. are justified. (See Deyo v. Kilbourne (1978) 84 Cal.App.3d 771.)

The court has previously sanctioned this party for failing to comply with discovery demand. The Respondent has had nearly 3 years to comply and has failed to do so. The court has utilized lesser sanctions without any effect. The court has no lesser options left to utilize at this point other than to grant the motion for terminating sanctions as requested to strike Respondent’s Response and Objection dated March 12, 2021, and order sanctions in the amount of \$500 due within 10 days.

TENTATIVE RULING #6: THE MOTION FOR TERMINATING SANCTIONS IS GRANTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).